

25STCV03197 25STCV03197

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-07-15

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Chen Chen v. Bestco Financial Services, Inc., et al.

MOTION TO COMPEL COMPLIANCE WITH SUBPOENA DUCES TECUM

MOVING PARTY: Defendant/Cross-Complainant Bestco Financial Services, Inc.

RESPONDING PARTY(S): Unopposed

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Chen Chen (Plaintiff) brings this employment action against defendant Bestco Financial Services, Inc and Xun Wang. Plaintiff alleges nine causes of action including Labor Code violations and wrongful termination.

Bestco Financial Services, Inc. (Bestco) filed a cross-complaint against Plaintiff for: (1) breach of fiduciary duty; (2) breach of duty of loyalty; (3) intentional interference with prospective economic advantage; (4) negligent intentional interference with prospective economic advantage; (5) breach of contract; (6) unfair business practices; (7) violation of the California Uniform Trade Secrets Act; and (8) violation of the Defend Trade Secrets Act.

Bestco now moves to compel non-party, Allstate Joanna Lu Agency (Responding Party) to comply with Bestco's subpoena of business records. There is no opposition. Bestco filed a notice of non-opposition.

TENTATIVE RULING:

Bestco's Motion to Compel is GRANTED.

Responding Party is ordered to turn over all responsive documents within 30-days of this Ruling.

Bestco's request for sanctions against Allstate Joanna Lu Agency is GRANTED, in an amount to be determined at the hearing.

Bestco is ordered to give notice by personal service upon Allstate Joanna Lu Agency.

DISCUSSION:

Compel Compliance

A. Legal Standard

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Pro. § 2025.480.) "When a subpoenaed nonparty fails to appear for a deposition or produce documents that were properly requested, the party who subpoenaed the witness may move to compel compliance with the subpoena." (Sears, Roebuck & Co. v. Nat'l Union Fire Ins. Co. of Pittsburgh (2005) 131 Cal.App.4th 1342, 1351.)

B. Analysis

Responding Party "was served with the Subpoena for Documents, which requested Bestco's former employee and Plaintiff/Cross-Defendant, Chen Chen's, employment records, payroll records, insurance policies reflecting clients Ms. Chen has brought to Lu Agency during her employment (Category 5), a list of all clients Ms. Chen has brought to Lu Agency during her employment (Category 6), among other documents." (Hernandez Decl. ¶2.) "Lu Agency provided Ms. Chen's payroll records on March 12, 2026. Lu Agency provided supplemental documents on March 26, 2026 and April 17, 2026. However, none of the documents provided are insurance policies reflecting clients Ms. Chen has brought to Lu Agency during her employment or a list of all clients Ms. Chen has brought to Lu Agency during her employment. Bestco has good reason to believe that Ms. Chen did, in fact, bring clients to Lu Agency during her employment and that Lu Agency possesses documents relating to those clients. Bestco is still without this information." (Id. at ¶4.) "On May 1, 2026, First Legal received this email: 'On behalf of Joanna Lu, she has already provided your office with all the documents she has. Joanna Lu is requesting that you and your office stop contacting her regarding this matter.'" (Id. at ¶6.) "As of today, Lu Agency has not produce any information regarding the clients Ms. Chen brought to it during her employment and refused to meet and confer with Bestco." (Id. at ¶7.)

Bestco now seeks a motion to compel compliance with the subpoena.

Bestco argues that there is good cause to compel production on the requests because, "Bestco has good reason to believe that Ms. Chen brought clients to Lu Agency and that Lu Agency possesses documents relating to those clients. Lu Agency's blanket assertion that it has produced everything, without addressing Categories 5 and 6 specifically, fails to demonstrate compliance." (Mot. at p. 5:11-14.)

Here, Bestco has demonstrated that Responding Party failed to produce all responsive documents required by the subpoena. This discovery is relevant to the claims and defenses in this action, and thus, further discovery is warranted.

Accordingly, Bestco's Motion to Compel is GRANTED.

Responding Party is ordered to turn over all further responsive documents within 30-days of this Ruling.

C. Sanctions

In making an order pursuant to California Code of Civil Procedure section 1987.1, "the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

In the notice of the motion, "Bestco further moves this Court for an order requiring Lu Agency to pay monetary sanctions to Bestco for causing tremendous delay in the discovery process and failing to produce responsive documents, necessitating this Motion. After the Court order on this motion, Bestco reserves the right to request that monetary sanctions be imposed against Lu Agency for its costs and fees for having to file this motion." (Not. of Mot. at p. 2:8-12.)

Here, Bestco is entitled to their reasonable attorney's fees. However, Bestco did not indicate the amount of fees incurred in bringing this motion. Bestco must demonstrate their reasonable fees at the hearing.

Bestco's request for sanctions against Allstate Joanna Lu Agency is GRANTED, in an amount to be determined at the hearing.

IT IS SO ORDERED.

Dated: July 15, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Responding party was personally served on May 26, 2026. (See 6/9/26 Notice of Service of Process, Exh. B; see CRC 3.1346) Plaintiff was served via email. (Mot. at p. 8/9.)